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Demurrer to Plaintiff's First Amended Complaint and Motion to Strike

Moving Party: Defendant Juan Pedro Navarro

Responding Party: Plaintiff Maria I. Iraheta

RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's Demurrer to the fourth cause of action of Plaintiff's FAC is SUSTAINED with leave to amend. Moving Defendant's Motion to Strike is GRANTED with leave to amend.

PROCEDURAL BACKGROUND

On March 16, 2026, Plaintiff Maria I. Iraheta ("Plaintiff") filed a complaint against Defendants Hensel Phelps Construction Company, County of Los Angeles, Juan Pedro Navarro, Luis A. Navarro Gonzalez, and DOES 1 through 10, inclusive (collectively, "Defendants"), alleging five causes of action for: (1) Negligence; (2) Negligence; (3) Negligent Entrustment; (4) Intentional Infliction of Emotional Distress; and (5) Dangerous Condition of Public Property.

On June 26, 2026, Defendant Juan Pedro Navarro ("Moving Defendant") filed a Demurrer and Motion to Strike.

On July 9, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants, alleging the same five causes of action.

On August 7, 2026, Moving Defendant filed the instant Demurrer. On August 10, 2026, Moving Defendant filed the instant Motion to Strike. On September 3, 2026, Plaintiff filed an opposition. On September 4, 2026, Moving Defendant filed a reply.

FACTUAL BACKGROUND

Plaintiff alleges that on February 7, 2025, she stepped into a crosswalk outside of Harbor UCLA Medical Center when a motor vehicle driven by Moving Defendant struck Plaintiff, sending her multiple feet into the air and causing Plaintiff to crash down onto the pavement several feet from where Plaintiff was first struck by the motor vehicle. (FAC, ¶ 2.) Plaintiff alleges that her view of the vehicle driven by Moving Defendant was obstructed by construction fencing installed by Hensel Phelps

Construction Company and approved by the County of Los Angeles. (FAC, ¶ 3.) Plaintiff alleges that following the incident, Moving Defendant informed law enforcement that Moving Defendant is diabetic and “suffers from an unknown chronic medical condition that causes him to experience shortness of breath, blurry vision, and sudden blackouts.” (FAC, ¶ 5.) Plaintiff alleges that before operating the motor vehicle on the date of the incident, Moving Defendant knew that he suffered from the chronic medical condition and was aware that his condition could cause blurry vision, sudden loss of consciousness, or sudden blackouts, impairing his ability to safely control a motor vehicle and avoid a collision. (FAC, ¶ 6.) Plaintiff alleges that despite his knowledge, Moving Defendant chose to operate the motor vehicle on the date of the incident around Harbor UCLA Medical Center, including around marked crosswalks where pedestrians were reasonably expected to be present. (FAC, ¶ 7.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians’ Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party’s Argument

Moving Defendant demurs to Plaintiff’s fourth cause of action for Intentional Infliction of Emotional Distress because Plaintiff’s allegations regarding Moving Defendant’s conduct rise to the level of negligence, but not extreme and outrageous conduct. Moving Defendant further argues that Plaintiff fails to allege facts showing that Moving Defendant intended to cause Plaintiff emotional distress or acted with substantial certainty that such distress would occur. Finally, Moving Defendant argues that Plaintiff’s fourth cause of action is uncertain because the FAC fails to identify the specific conduct that allegedly constitutes “outrageous” conduct beyond the same allegations underlying Plaintiff’s Negligence cause of action.

Moving Defendant moves to strike Plaintiff’s prayer for punitive and exemplary damages against Moving Defendant and the supporting allegations because the FAC’s allegations regarding Moving Defendant’s conduct are conclusory and fail to establish malice pursuant to CCP Section 3294. Moving Defendant argues that Plaintiff has failed to allege that Moving Defendant intentionally impaired himself, ignored medical advice not to drive, had previously lost consciousness while driving, had a history of similar collisions, or was experiencing symptoms when he chose to operate the motor vehicle.

Opposing Party's Argument

Plaintiff argues that her FAC has sufficiently alleged each element of the Intentional Infliction of Emotional Distress cause of action, because Plaintiff has alleged that Moving Defendant was aware that he suffered from a condition capable of causing sudden blackouts yet operated the motor vehicle at a high rate of speed and failed to stop for Plaintiff while she was in the crosswalk. Plaintiff argues that the FAC alleges Moving Defendant's conscious decision to drive even with his knowledge of his medical condition. Plaintiff further argues that she has pled a reckless disregard theory and thus does not need to allege that Moving Defendant had a subjective intent to injure Plaintiff. Next, Plaintiff argues that her allegations regarding the construction fencing are not inconsistent with her fourth cause of action because the FAC independently alleges Moving Defendant's prior knowledge of his medical condition and his subsequent decision to drive. Finally, Plaintiff argues that the FAC is not unintelligible because Plaintiff has identified the date of the incident, the location, the vehicle involved, and the Defendant whose conduct is challenged.

In opposition to the Motion to Strike, Plaintiff argues that she has alleged that Moving Defendant consciously chose to operate the vehicle despite his knowledge that his chronic medical condition could cause sudden blackouts and impaired vision which could render Moving Defendant unable to control the vehicle. Therefore, Plaintiff argues that the FAC adequately alleges despicable conduct by Moving Defendant.

Reply Argument

In reply, Moving Defendant reiterates his argument that the FAC's allegations may support the Negligence cause of action against Moving Defendant, but have not established the requisite extreme and outrageous conduct or reckless disregard of the possibility of causing emotional distress. Moving Defendant argues that Plaintiff improperly conflates Moving Defendant's alleged knowledge of a possible risk with the reckless disregard of a probable consequence.

Moving Defendant also reiterates his argument that Plaintiff has failed to allege facts showing that Moving Defendant was experiencing symptoms of a chronic condition before driving on the date of the incident, had previously suffered such symptoms while driving, had been advised not to drive, or knew that operating a vehicle on the date of the incident would likely endanger others. Moving Defendant argues that Plaintiff has not alleged his actual awareness of a probable dangerous consequence of Moving Defendant's conduct.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendant's counsel declares that "the parties have met and conferred." (Rabbani Decl., ¶ 5.) Because Moving Defendant's counsel has not specified whether the parties have met and conferred in person, by telephone, or by video conference, the court cannot find that the meet and confer requirements have been met. However, the court will still discuss the merits of Moving Defendants' instant demurrers because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Uncertainty: Code of Civil Procedure Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that "the pleading is uncertain," a term which "includes ambiguous and unintelligible." (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khoury, supra, 14 Cal.App.4th at 616.)

Here, Moving Defendant argues that Plaintiff's fourth cause of action is fatally uncertain because the FAC "does not identify what [Moving] Defendant specifically did that transformed and alleged act of negligence into an intentional tort, nor does it identify what facts purportedly establish [Moving] Defendant's intent to cause emotional distress." (Dem. 9:14-17.)

The court finds that Moving Defendant can reasonably respond to the FAC because he has identified that a cause of action for Intentional Infliction of Emotional Distress has been directed against him, and has identified the factual basis for Plaintiff's cause of action, by stating in the moving papers that the FAC's "allegations describe an automobile accident allegedly caused by [Moving] Defendant's negligent operation of a motor vehicle and his decision to drive despite an alleged medical condition." (Dem. 8:14-16.)

Therefore, the court finds that Moving Defendant is reasonably able to respond to Plaintiff's fourth cause of action.

Accordingly, Moving Defendant's Special Demurrer for uncertainty is OVERRULED.

C. Fourth Cause of Action: Intentional Infliction of Emotional Distress

"The elements of a prima facie case for the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (Wilson v. Hynek (2012) 207 Cal.App.4th 999, 1009, citation and ellipses omitted.)

Additionally, "it is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware." (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1002, citing Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.)

Moving Defendant argues that Plaintiff has failed to allege facts showing that Moving Defendant engaged in extreme and outrageous conduct or that Moving Defendant acted with intent or reckless disregard of the probability of causing Plaintiff emotional distress.

Here, Plaintiff alleges that Moving Defendant's conduct, "by operating the vehicle that hit [Plaintiff] at a high rate of speed within a hospital parking lot and failing to stop for [Plaintiff] while she was in a crosswalk, was outrageous and extreme." (FAC, ¶ 45.) Plaintiff further alleges that Moving Defendant's conduct was outrageous and extreme because before Moving Defendant operated a vehicle on the date of the incident, Moving Defendant "knew that he was diabetic and suffered from a chronic medical condition causing shortness of breath, blurry vision, sudden blackouts, and knew that such symptoms could suddenly impair or eliminate his ability to safely operate and control a motor vehicle." (FAC, ¶ 46.) Plaintiff alleges that Moving Defendant acted with "conscious disregard of the probability that his medical condition could cause him to lose consciousness, suffer visual impairment, lose control of the vehicle, and cause catastrophic physical and emotional injury to pedestrians, including Plaintiff." (FAC, ¶ 47.)

The court agrees with Moving Defendant that Plaintiff has failed to allege extreme and outrageous conduct which was directed at Plaintiff. Plaintiff's allegation that Moving Defendant "acted with reckless disregard for the probability that Plaintiff would suffer emotional distress" is conclusory, because Plaintiff has not alleged any basis for Moving Defendant's awareness

that this type of incident was likely to occur. Thus, Plaintiff has not alleged a sufficient factual basis to show that Moving Defendant's conduct was directed at Plaintiff or that Moving Defendant was aware that Plaintiff was in the crosswalk, given the FAC's allegations regarding Moving Defendant's medical condition. These factual allegations are wholly distinguishable from those of voluntary intoxication.

Accordingly, Moving Defendant's Demurrer to Plaintiff's fourth cause of action is SUSTAINED.

D. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading.(Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Here, Moving Defendant seeks to strike Plaintiff's prayer for punitive and exemplary damages and Plaintiff's supporting allegations at paragraphs 9 and 50 of the FAC.

In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code Section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, Section 3294(a).)

"Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (College Hospital, Inc., supra, 8 Cal.4th at 725.) "A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

"As amended to include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found."(College Hospital, Inc., supra, 8 Cal.4th at 725.) The statute's reference to despicable conduct represents a "new substantive limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as 'having the character of outrage frequently associated with crime.'" (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]" (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

The court refers to its previous discussion and finds that Plaintiff has failed to allege that Moving Defendant acted with an intent to injure Plaintiff or that Moving Defendant's conduct was "despicable" pursuant to Civil Code Section 3294. At most, Plaintiff has alleged that Moving Defendant negligently operated the motor vehicle, resulting in the collision with Plaintiff.

Accordingly, Moving Defendant's Motion to Strike is GRANTED in its entirety.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The court notes that this is Moving Defendant's first challenge to Plaintiff's operative pleading that is heard by the court, as Moving Defendant's first demurrer was rendered moot by Plaintiff's filing of the FAC. Further, Plaintiff argues in her opposition that she will be able to provide further factual specificity as to the challenged cause of action and prayer for damages.

Accordingly, the court GRANTS Plaintiff leave to amend her fourth cause of action in addition to her prayer for punitive damages and the supporting allegations.

CONCLUSION

Based on the foregoing, Moving Defendant's Demurrer to the fourth cause of action of Plaintiff's FAC is SUSTAINED with leave to amend. Moving Defendant's Motion to Strike is GRANTED with leave to amend.

Any amended complaint is to be filed and served within 30 days.

Moving party is ordered to give notice of ruling.